

Justification & Approval For Other than Full and Open Competition

As a legislative branch agency, the Library is subject to the competition and advertising requirements of 41 U.S.C. § 6101. Like the Competition in Contracting Act and the FAR, 41 U.S.C. § 6101 does not require competition when a contracting officer certifies that only one source or brand-name item is available, when dictated by public exigency, or when otherwise authorized by law.

This document sets forth the justification and approval for award of a contract or order by means providing for other than full and open competition per 41 U.S.C. § 6101, LCR 7-210, and, as applicable, FAR 6.302, FAR 13.106-1, FAR 8.405, and FAR 16.505. Contracting without competition shall not be justified on the basis of a lack of advance planning or concerns related to availability of funds.

This form shall be used to support instances where competition will be limited to a single source, a limited number of sources, including where a brand name product is required.

Part 1 – Identification

1. Contracting Agency and Activity: Library of Congress, Office of the Chief Information Officer (OCIO)

2. Nature of Action Being Approved

- ☒ Contract (or modification)
- ☐ LoC or Leg Branch Order (or modification)
- ☒ GSA Schedule or GWAC: EIS Schedule Contract
- ☐ Other:

Plan ID Number: 2025-CIO-0364

Contractor (or Brand Name): Verizon

Estimated Value (Base and all options):

Period of Performance: 03/30/2025 – 08/29/2025

3. Description of Supplies or Services Required to Meet Library Needs

The Library requires a five (5) month extension of the Library's existing Verizon EIS contract (LCCIO19F0137) to allow additional transition time to facilitate a smooth and carefully managed transition of services to the Library's new EIS contract (LCCIO24F0055) that was awarded 09/29/2024.

The services required for the extension of LCCIO19F0137 include the remaining voice and data services, voice communication services, and toll-free telephone services as provided in GSA's EIS contract. The Library requires provisioning and support services, Service Enabled Devices (SED), maintenance of existing circuits and equipment, and access arrangements.

Part 2 – Program Office Justification & Approval

4. Authority for Contracting Without Competition

Order Under Multiple Award Indefinite-Delivery Contract or GWAC

For this order under FAR subpart 16.5, the basis for contracting without providing for full and open competition is:

- ☐ The need is so urgent fair opportunity would result in unacceptable delays. 41 U.S.C. § 6101(b)(2)(C) and FAR 16.505(b)(2)(i)(A).
- ☐ The Library's minimum needs can only be satisfied by contractor's unique capabilities or products. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(i)(B).
- ☒ A logical follow-on order in the interest of economy and efficiency. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(i)(2)(C).
- ☐ To satisfy a minimum guarantee. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(D).
- ☐ Authorized or required by statute. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(E).
- ☐ The Library's minimum needs can only be satisfied by a brand-name product or item which is essential to the Government's requirement. 41 U.S.C. § 6101(b)(2)(B) and FAR 16.505(a)(4)(i).
- ☐ The Product is listed on the Library of Congress Enterprise Architecture Repository (LCEAR) database (Attach applicable IT Standard Data Sheet)

5. Rationale for Contracting Without Competition

We are authorized to limit competition on the basis of the citation in section 4 because this is a period of performance extension of the Library's current EIS Contract (LCCIO19F0137) and the services are currently in the process of transitioning to the Library's newly awarded EIS Primary Contract (LCCIO24F0055). This extension is being completed for administrative convenience because the Library is unable to issue a new order against Verizon's GSA EIS Schedule contract due to the services no longer being available for ordering.

Transition to the new EIS contract was scheduled to be completed by 3/29/2025. All services have not been transitioned and disconnected from the existing contract. This is, in part, because the process of ordering new circuits and transitioning a complete telecommunications infrastructure is extremely complex and time consuming. Processing of some orders through the EIS system proved to be lengthy. The contract extension requested will allow additional time to complete a smooth transition of all services and have disconnects completed within the extended time.

The purpose of this modification is to maintain the remaining services under LCCIO19F0137, while the new services are being installed to avoid a disruption of voice and data services. If LCCIO19F0137 is not extended, the Library would have a disruption of voice and data services that would potentially create security, technical and operational risks with Library facilities not being able to communicate with other Library facilities or members of the public. These voice and data services serve a critical role at the Library, and such disruption and risks would be unacceptable to the Library, its patrons and staff.

6. Actions to Overcome Barriers to Competition Before Subsequent Contract Is Required

Competition is not applicable in this instance. However, the Office of the Chief Information Officer (OCIO) will review the market as a standard documented process to search and research technical avenues to determine if any other services might best cost-effectively meet the Library's complete need for this requirement. To maximize future competition, other sources are continually under our evaluation and may be considered for potential use on future service infrastructure acquisitions to fulfill this requirement.

7. Program Office Certification

I certify that the description of the Government's minimum needs, schedule requirements, and technical information that provide the basis for this justification are accurate and complete.

[Redacted]

[Redacted]

[Redacted]

[Redacted]

03/04/2025

Name

Title

Signature

Date

PART 3 – CONTRACTING OFFICER DETERMINATIONS & CERTIFICATION

8. Efforts to Solicit from As Many Potential Sources As Practicable

Unless a justification is based on FAR 6.302-2, Unusual and compelling urgency, contracting officers shall post justifications for other than full and open competition, including brand name justifications, to the Contract Opportunities website on sam.gov (or eBay for Brand Name Justifications under FAR Part 8) prior to requesting a proposal or otherwise entering into negotiations.

- ☐ Advance notice will be published in sam.gov for 15 days before a contract is awarded. FAR 5.203(a).
- ☐ Advance or concurrent notice will be published in sam.gov for a reasonable time for commercial items FAR 5.203(a) and 12.204(b).
- ☒ Advance notice will not be published because the action meets the following FAR exception:
- ☐ Notice would compromise national security. FAR 5.202(a)(1).
- ☒ Unusual and compelling urgency; notice period would seriously injure Government. FAR 5.202(a)(2).
- ☐ Expressly authorized or required to be made through another Government agency. FAR 5.202(a)(4).
- ☐ Order will be placed against an IDIQ contract awarded under FAR 16.5. FAR 5.202(a)(6).
- ☐ Order will be placed against GSA schedule or other competitively-awarded contract. FAR 5.202(a)(11).
- ☐ Other:
- ☐ Advance notice will not be published per 41 U.S.C. § 6101; see attached deviation from the FAR per LCR 7-210 § 3.A.

We made the following efforts to interest potential sources in this award: *N/A*

9. Listing of Sources That Expressed Interest in Writing

The following sources expressed interest in this award: *N/A*

10. Additional Information

The following additional information is relevant to this justification and approval: *N/A*

11. Contracting Officer Determination that Price Is Fair and Reasonable

As explained in detail below, I have determined that the prices for this contracting action are fair and reasonable based on comparison of the prices to the following (see FAR 15.404-1(b)(2)):

- | | |
|--|--|
| ☐ Historical prices paid by the Government | ☐ Published competitive price lists |
| ☐ Library's Independent Government Estimate | ☐ Prices obtained through market research |
| ☒ Other: Current order pricing | ☐ Prices obtained through competitive proposals |

The following analysis (based on attached pricing information) supports my determination: The pricing for the extension will utilize the last ordering period pricing.

12. Contracting Officer Determination of Responsibility

- ☒ Checked System for Award Management (or will check in the case of competitive proposals for a brand name product)

13. Contracting Officer Determination of Best Value

I have determined that this action represents the best value to the Government because: the order must be extended to ensure continuity of services to the Government.

14. Contracting Officer Certification

I certify that, to the best of my knowledge and belief, this justification is accurate and complete. For those actions up to \$750,000, I approve contracting without competition for this requirement.

[Redacted]

Name

[Redacted]

Signature

03/11/2025

Date